

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

7. JOHN HUSSEY V. SHARON ZALEZNIAK

24FL1195

Respondent filed a Request for Order (RFO) on December 15, 2025, seeking spousal support as well as Family Code section 2030 attorney's fees orders. Respondent concurrently filed an Income and Expense Declaration and Declaration of Counsel in support of attorney's fees. Proof of Service shows Petitioner was served electronically on December 17, 2025. However, Petitioner was not served with the Notice of Tentative Ruling or Remote Appearance forms.

On February 27, 2026, parties stipulated to continue the hearing to May 28, 2026, at 8:30 AM in Department 5.

Petitioner filed a Responsive Declaration, Declaration of Brian Boon, Declaration of Respondent, and an Income and Expense Declaration on May 14, 2026. All documents were electronically served on May 14th. Petitioner does not raise the issue regarding the defect in service, as such, the court finds it to have been waived.

On May 20th, Respondent filed and served her Income and Expense Declaration, a Declaration of Dominic Porrino in Support of Respondent's Request for Attorney Fees and Costs, and Respondent's Reply Declaration to Petitioner's Responsive Declaration.

Respondent is seeking \$15,000 a month in temporary support. Respondent is also seeking \$50,000 in Family Code section 2030 attorneys' fees. Petitioner agrees with providing temporary guideline spousal support and has provided a proposed X-Spouse calculation. Petitioner is also in agreement with providing Family Code section 2030 attorney's fees in the amount of \$50,000.

The court has read and considered the filings as outlined above. The court adopts the proposed X-Spouse calculation as set forth in Petitioner's Exhibit 1 to the Responsive Declaration. The court orders Petitioner to pay Respondent \$5,432 as and for temporary guideline spousal support effective June 1, 2026, and payable on the first of each month until further order of the court or termination by operation of law.

Regarding the request for attorney's fees, the public policy of Family Code section 2030 is to provide "at the outset of litigation, consistent with the financial circumstances of the parties, parity between spouses in their ability to obtain effective legal representation." In re Marriage of Keech, 75 Cal. App. 4th 860, 866 (1999). This ensures each party has access to legal representation to preserve each party's rights. In the face of a request for attorney's fees and costs, the court is to make findings on "whether there is a disparity in access to

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funds to retain counsel, and whether one party is able to pay for legal representation of both parties.” Fam. Code § 2030(a)(2).

Family Code section 2032 works in tandem with Section 2030 to ensure that any award of costs and fees is just and reasonable. Fam. Code § 2032. “In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party’s case adequately.” *Id.* at (b). Financial resources are only one factor to be considered though. *Id.* In addition to the parties’ financial resources, the court may consider the parties’ trial tactics. In Re Marriage of Falcone & Fyke, 203 Cal. App. 4th 964; 975 (2012).

The court finds there is a disparity in access to funds and that Petitioner can pay for both his and Respondent’s attorney’s fees. The court grants the request for Family Code section 2030 attorney’s fees in the amount of \$30,000. The payment is to be made directly to Respondent’s counsel in one lump sum or in monthly payments of \$2,500 with the first payment due on June 15, 2026, and future payments due on the 15th of each month until paid in full (approximately 12 months). If any payment is missed or late, the entire amount shall become immediately due and owing.

Parties are reminded of the public policy of Family Code section 271. “Section 271 provides that a family court may impose an award of attorney fees and costs ‘in the nature of a sanction’ where the conduct of a party or attorney ‘frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation between the parties and attorneys.’ (§ 271, subd. (a).)” In re Marriage of Tharp 188 Cal.App.4th 1295, 1316 (2010). “Expressed another way, section 271 vests family law courts with an additional means with which to enforce this state’s public policy of promoting settlement of family law litigation, while reducing its costs through mutual cooperation of clients and their counsel.” (*Id.* at 1318.)

All prior orders not in conflict with these orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE COURT ADOPTS THE PROPOSED X-SPOUSE CALCULATION AS SET FORTH IN PETITIONER’S EXHIBIT 1 TO THE RESPONSIVE DECLARATION. THE COURT ORDERS PETITIONER TO PAY RESPONDENT \$5,432 AS AND FOR TEMPORARY

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GUIDELINE SPOUSAL SUPPORT EFFECTIVE JUNE 1, 2026, AND PAYABLE ON THE FIRST OF EACH MONTH UNTIL FURTHER ORDER OF THE COURT OR TERMINATION BY OPERATION OF LAW.

THE COURT FINDS THERE IS A DISPARITY IN ACCESS TO FUNDS AND THAT PETITIONER HAS THE ABILITY TO PAY FOR BOTH HIS AND RESPONDENT'S ATTORNEY'S FEES. THE COURT GRANTS THE REQUEST FOR FAMILY CODE SECTION 2030 ATTORNEY'S FEES IN THE AMOUNT OF \$30,000. THE PAYMENT IS TO BE MADE DIRECTLY TO RESPONDENT'S COUNSEL IN ONE LUMP SUM OR IN MONTHLY PAYMENTS OF \$2,500 WITH THE FIRST PAYMENT DUE ON JUNE 15, 2026 AND FUTURE PAYMENTS DUE ON THE 15TH OF EACH MONTH UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE, THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND OWING.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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8. BRITTANY KEE-KOC V. JIMMY FERREL KEE, JR.

26FL0097

Petitioner filed a Request for Order (RFO) on February 25, 2026, seeking child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 2, 2026, and a review hearing on May 28, 2026. Proof of Service shows Respondent was served by mail on March 2, 2026. However, Respondent was not served with all the required documents, namely he was not served with the Notice of Tentative Ruling and the Remote Appearance Request forms.

Both parties appeared at CCRC and were able to reach a full agreement. A report memorializing the parties' agreement was filed with the court on May 12, 2026. Copies were mailed to the parties on May 13, 2026.

Respondent has not filed a responsive declaration.

The court has read and considered the May 12th CCRC report with the parties' agreement. The court finds good cause to proceed, despite the defect in service, as the parties attended CCRC and reached an agreement. The court finds the agreement to be in the best interest of the minor. The court adopts the agreement as set forth.

All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #8: THE COURT FINDS GOOD CAUSE TO PROCEED, DESPITE THE DEFECT IN SERVICE, AS THE PARTIES ATTENDED CCRC AND REACHED AN AGREEMENT. THE COURT FINDS THE AGREEMENT TO BE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE AGREEMENT AS SET FORTH. ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE